

1.

CASE #	CASE NAME	HEARING NAME
CVRI2500309	CAPITAL ACCOUNTING PARTNERS, LLC VS COUNTY OF RIVERSIDE	DEMURRER ON 4 TH AMENDED COMPLAINT

Tentative Ruling:

The Court continues this hearing to October 2, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506266	MCCOLLUM VS COUNTY OF RIVERSIDE	MOTION FOR DISCOVERY OF PEACE OFFICER PERSONNEL AND OTHER DOCUMENTS ("PITCHESS")

Tentative Ruling:

The Court DENIES the motion. As to motion categories 17 and 18, the request is not for peace officer personnel records. As to motion categories 1-11, 19 and 20 plaintiff may obtain his own records through the Public Safety Officers Procedural Bill of Rights Act. As to motion categories 12, 13, 14 and 15, the application is defective under Evid. Code §1043(b) for failing to identify the officers whose records are being sought. As to motion category 16, the motion fails because the supporting declaration failed to show a plausible factual foundation for discovery of Sgt. Burke's records.

This is an action for disability discrimination and related causes of action brought by a former deputy sheriff, plaintiff Michael McCollum, against his former employer, defendant County of Riverside. The basics of McCollum's allegations are that: from November 2020 through October 2021 he was on disability medical leave, returning to work with modified duties that met his need to do stationary work. After six months he was told that these restrictions could no longer be accommodated and was placed on leave again, and in November of 2022, upon returning to work, was told to either quit, take a demotion, or retire. As is relevant to the issues in the pending motion, plaintiff alleges that "he knew of other Deputy Sheriffs who were allowed to maintain their rank after only performing stationary work. Mr. McCollum's restrictions could have easily been accommodated as the County's Sheriff's Department has numerous positions that are stationary, and Mr. McCollum understood that there were several job duties that he could have performed within his restrictions." (Complaint, ¶13.) In both the complaint and the motion plaintiff asserts that the County had allowed other officers to take similar restricted duties as an accommodation.

On December 29, 2025, plaintiff propounded discovery consisting in part of 55 Requests for Production. (Chami declaration, Exhibit "A".) The County responded on March 3, 2026. (Exhibit "B".) The County responded to 54 of the 55 RFP, skipping plaintiff's RFP #10 and renumbering them.